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Dear Members of the San Mateo City Council,

I have been asked to describe the contribution that Automated License Plate Readers (ALPR) have made to public safety and more specifically, criminal prosecutions, in the hope that it is helpful to you in assessing the costs and benefits of this technology to our community. By way of introduction, I am the supervisor of the Homicide Unit and have been involved in the prosecution of murders for nearly 20 years.

In framing this discussion, it is important to understand that the benefits are not hypothetical. In the City of San Mateo alone, 2 murder prosecutions have been made possible by this technology, and one additional investigation was substantially advanced by ALPR evidence. In one instance, the identification of the perpetrator of a cold-blooded ambush killing would not have been possible without it. In another, the apprehension of a man who strangled his pregnant girlfriend resulting in her death and the death of her unborn child, occurred directly as a result of ALPR evidence. In both investigations, this information led police to murderers who had fled hundreds of miles from the scenes of their horrific crimes and may never have faced justice if not for ALPR technology.

This is to say that I have stood shoulder to shoulder with homicide victims' families while they hoped against hope that the people responsible for these tragedies are identified, arrested and prosecuted. In some cases, that simply would not be possible without the information provided by ALPR technology. Inevitably, serious crimes will go unsolved should ALPR readers be removed from the roadways of this community.

Moreover, there are considerable safeguards in place with an eye towards minimizing the intrusion into privacy: 1) The intentional omission of the vehicle's occupants from any photos produced; 2) The requirement that a legitimate investigative need must exist to access the information; 3) The existence of audit logs; and 4) Robust policies addressing unauthorized or improper access.

The law enforcement community acknowledges the concerns of the public and takes its responsibility as stewards of this information seriously, but the community should understand the price paid for being overzealous. It is not hard to imagine a drive-by shooting, an armed robbery, or kidnapping where investigators are left looking at a public street corner where an ALPR camera used to be posted. In view of this, what satisfactory answer could be given to victims and victims' families when they wonder why such a valuable tool was removed from their police department. Thank you for your time and consideration.

Very truly yours,

STEPHEN M. WAGSTAFFE, DISTRICT ATTORNEY



By_____
Morris Maya, Assistant District Attorney